

26STCV03511 26STCV03511

County: los-angeles

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Case Number: 26STCV03511 Hearing Date: July 21, 2026 Dept: 14

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES

DEPARTMENT 14

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EUFEMIA MORENO and FRANK MORENO,

Plaintiffs,

v.

ARKEMA, INC. f/k/a Pennwalt Corp., et al.

Defendants.

Case No. 26STCV03511

¿¿¿¿

Hearing Date: July 21, 2026

Time:

9:00 a.m.

¿ [TENTATIVE] ORDER

RE:¿

PLAINTIFFS' MOTION FOR PREFERENTIAL TRIAL
SETTING

I.

Background

On January 20, 2026, Plaintiffs Eufemia and Frank Moreno (collectively, "Plaintiffs") filed their complaint alleging Ms. Moreno developed mesothelioma from exposure to asbestos through asbestos-containing talcum powder and make-up products as well as occupational exposure to asbestos-containing products. On June 24, 2026, Plaintiffs filed their motion for trial setting preference under Code of Civil Procedure section 36, subdivisions (d) and (e) arguing that Ms. Moreno's health is such that there is substantial medical doubt of her survival beyond six months. Alternatively, Plaintiffs contend that the interests of justice will be served by granting trial preference.

On

July 8, 2026, Defendants Estee Lauder Inc. and The Estee Lauder Companies Inc. (collectively, "Estee Lauder") filed a substantive opposition. Estee Lauder argues in opposition that the court has discretion to deny Plaintiffs' request, the Plaintiffs have not carried their burden under section 36, subdivision (d), and the interests of justice do not support preference here because foundational discovery, like Mr. Moreno's deposition, remains incomplete. On July 9, 2026, Defendants Arkema, Inc., L'Oreal USA, Inc., and Walmart Inc. filed joinders to Estee Lauder's opposition.

On

July 8, 2026, Defendants Gold Bond Co LLC and Chattem, Inc. (collectively, "Gold Bond") filed a substantive opposition, similarly arguing that Plaintiffs have not presented clear and convincing medical evidence that raised substantial doubt regarding Ms. Moreno's survival beyond six months and that the interests of justice will not be served by granting Plaintiffs' motion.

On

July 14, 2026, Plaintiffs filed a reply, arguing that Defendants erroneously claim Dr. Spier's testimony is insufficient grounds to grant this motion and that additional issue, like deposition and discovery issues, are irrelevant to a determination under Code of Civil Procedure section 36.

The court finds that Plaintiffs

failed to satisfy their burden to show they are entitled to trial preference under Code of Civil

Procedure section 36, subdivisions (d) and (e). The evidence does not support a finding that there is significant medical doubt of Ms. Moreno's survival beyond six months. Additionally, the evidence does not support a finding that the interests of justice would be served by granting trial preference. The court denies Plaintiffs' motion for trial preference.

II.

Discussion

A.

Legal Standard

The court has discretion to grant a motion for trial preference accompanied by clear and convincing medical documentation concluding that one of the parties suffers from an illness or condition raising substantial medical doubt of survival of that party beyond six months and satisfying the court that the interests of justice will be served by granting the preference. (Code Civ. Proc., § 36, subd. (d).) The court may also grant a motion for preference in its discretion if it is supported by a showing that satisfies the court that the interests of justice will be served by granting the preference. (Id., § 36, subd. (e).)

"Upon the granting of such a motion for preference, the court shall set the matter for trial not more than 120 days from that date and there shall be no continuance beyond 120 days from the granting of the motion for preference except for physical disability of a party or a party's attorney, or upon a showing of good cause stated in the record." (Id., § 36, subd.

(f).) "Any continuance shall be for no more than 15 days and no more than one continuance for physical disability may be granted to any party." (Ibid.)

B.

Analysis

Plaintiff

Eufemia Moreno is 53 years old; in October 2025 she was diagnosed with malignant peritoneal mesothelioma. (Spier Decl., at ¶¶ 5-6; Soto Decl., at ¶ 3.) Ms. Moreno has undergone chemotherapy since November 2025 and underwent a cytoreduction surgery that included an exploratory laparotomy, intraabdominal tumor resection, and a partial hepatectomy on April 27, 2026. (Soto Decl., at ¶¶ 8-9.) Since her diagnosis, Ms. Moreno's counsel witnessed Ms. Moreno suffering from symptoms of her illness, including physical pain, weight loss, shortness of breath, physical and mental fatigue, and declining mental health. (Id., at ¶ 10.) Ms. Moreno's symptoms have worsened over time and due to her current treatments so has her outlook on life. (Ibid. ["She has stated, 'everyday [I] wake up and life is just – it's just like you're waiting on death row...'"].) Plaintiffs' counsel opines that Ms. Moreno may die suddenly from her disease, infections, and/or unexpected complications and that she will not be able to participate in trial if preference is not granted. (Id., at ¶ 14.)

Ms.

Moreno's medical records document the cytoreductive surgery conducted on April 27, 2026. (Spier Decl., Exh. E.) The records show that Ms. Moreno suffered from a "multiple areas of friable necroses and hemorrhage" and the "[t]umor grossly abuts multiple surfaces and grossly involves surrounding adipose tissue." (Id., at p. 26.) The court notes that Plaintiffs directed the court to access additional medical records through two ShareFile links. Plaintiffs were required to file relevant records supporting their trial preference motion together with the other supporting papers. Instead, the Sharefile links are to 28 documents totaling more than 3000 pages. Such an undifferentiated document dump ill serves Plaintiffs' motion and is an unwarranted imposition on the court. "It is [the parties'] duty to direct the court to evidence that supports their claims. It is not the court's duty to rummage through the papers to construct ... their case." (Collins v. Hertz Corp. (2006) 144 Cal.App.4th 64, 75.)

Ms.

Moreno testified in deposition that chemotherapy was draining and left her with "no energy." (Soto Decl., Exh. C at 13:37:35-13:37:48.) Treatment also left her with nausea, body aches, diarrhea, constipation, loss of appetite, and substantial weight loss. (Id., at 13:38:10-13:38:40.) Ms. Moreno also states that recovery from the HIPEC surgery could take anywhere from four to six months. (Id., at 13:40:46-13:40:48.) As to her activity level, Ms.

Moreno states that prior to her diagnosis, she was active due to her job at Walmart as an online order fulfiller and would walk over 20,000 steps a day; now, she requires the assistance of a walker or wheelchair soon after beginning to walk. (Id., at 13:41:12-13:41:56, 13:43:03-13:43:21.)

Dr.

Laurence Spier, a cardiothoracic surgeon who is not Ms. Moreno's physician but has reviewed her medical records, declares that he spoke to Ms. Moreno on April 10, 2026. (Spier Decl., at ¶ 9.) Since this conversation, Ms. Moreno has become more symptomatic, reporting that she has "mental anguish, chest pain, and gastroesophageal reflux." (Id., at ¶ 10.) Ms. Moreno also continues to lose weight due to loss of appetite, which she suffered from pre-surgery, and has a history of transient ischemic attacks (i.e. "mini-strokes"). (Ibid.) Dr. Spier opines that Ms. Moreno's post-op symptoms and the incurable nature of her cancer "reaffirms [his] belief that there is significant medical doubt of Mrs. Moreno's survival beyond the next six months." (Ibid.) Additionally, Dr. Spier opines on the likelihood that Ms. Moreno's condition is likely to continue deteriorating:

"My medical

opinion is, due to Mrs. Moreno's mesothelioma, the continued progression of her disease, and the strain of a highly invasive surgery in which her heart stopped beating momentarily, her ability to participate in trial is already impaired and will continually decline further as time passes. As Mrs. Moreno's mesothelioma progresses as it has already done and undoubtedly will continue to do, she is at risk of it spreading to her other organs. Mrs. Moreno is already suffering increasing pain, shortness of breath, fatigue, and weakness from her mesothelioma and is at high risk of rapid decline from infection or cancer progression.

Drawing upon my

professional training, clinical experience, and direct review of Mrs. Moreno's medical records and disease progression, I can state with medical certainty that her condition will continue to deteriorate. Mrs. Moreno is expected to suffer from escalating symptoms including pain, breathlessness, fatigue, physical weakness, and continued unintended weight loss. Despite ongoing treatment, her disease remains aggressive and incurable, placing her at persistent and significant risk for rapidly emerging infections and other serious complications. These health challenges will further compromise her energy, cognitive clarity, and ability to communicate effectively. As a result,

her capacity to participate in legal proceedings— such as deposition and trial—will steadily decline. The longer her participation is delayed, the less likely it becomes that she will be able to contribute meaningfully, until, ultimately, she may be unable to participate at all. Mrs. Moreno's illness is terminal, and her outlook is poor.”

(Id.,

at ¶¶

13-14.) Dr. Spier concludes that there is “substantial medical doubt regarding Mrs. Moreno's survival beyond six months from the date of this declaration.” (Id., at ¶ 14.)

In opposition, both Estee Lauder and

Golds Bond argue that Plaintiffs have not presented clear and convincing medical documentation raising substantial doubt of Ms. Moreno's survival beyond six months as required under Code of Civil Procedure section 36, subdivision (d). Estee Lauder notes that Dr. Spier is not Ms. Moreno's personal oncologist and provided opinions based on a phone call and looking at Ms. Moreno's medical records. (Opp., at p. 5.) Estee Lauder acknowledges that the declarations describe significant medical hardship, but the evidence, specifically Dr. Spier's declaration, “does not adequately explain why Ms. Moreno's current individualized condition satisfies section 36(d)'s six-month survival threshold.” (Opp., at p. 6.) Estee Lauder also contends that Plaintiffs' argument that Defendant have a financial incentive to delay this trial is unsupported and irrelevant to this issue here. (Ibid.)

Similarly,

Gold Bond argues that Dr. Spier's declaration does not purport to him having spoken to Ms. Moreno post-op nor does it acknowledge that the pathology's final diagnosis states the tumors “were ‘completely excised’ and that the margins of another specimen ‘appear negative for tumor.’” (Opp., at p. 3; Degen Decl., Exh. A.) Additionally, Dr. Spier does not acknowledge Ms. Moreno's office visit report on May 19, 2026, which states that “‘Patient reports that she is doing well. Pain is tolerable.’” (Opp., at p. 3; Spier Decl., Exh. 1, p. 1.) Gold Bond also argues that Plaintiffs' argument that Ms. Moreno will not survive more than six months is inconsistent with her physician's conclusion from the May 2026 office visit, wherein the doctor concluded that Ms. Moreno “could ‘follow up in 3 months for surveillance.’” (Ibid.) Degen Decl., Exh. A at 199:1-3.) Lastly, Ms. Moreno has not submitted her own declaration in support of this motion and

Plaintiffs have not provided any post-surgery medical documentation showing her mesothelioma's current status. (Opp., at pp. 3-4.)

Both

Estee Lauder and Gold Bond also argue that the interests of justice will not be served if trial preference is granted because Defendants' due process rights will be impaired if trial preference is granted. Gold Bond argues that they will have no opportunity to file dispositive motions or complete a substantial amount of discovery, especially since Mr. Moreno's deposition has not been taken yet. (Opp., at p. 5.)

The

court accepts Dr. Spier's declaration that between October 2025 and May 2026, Ms. Moreno's symptoms have worsened. But the court finds that Plaintiffs have failed to show by clear and convincing medical documentation that there is substantial medical doubt that Ms. Moreno will survive beyond six months. Although Plaintiffs' counsel opines that Ms. Moreno may die suddenly from her disease, the record does not support this assertion. Plaintiffs rely on medical records primarily before Ms. Moreno's April 2026 surgery. Although Dr. Spier reviewed Ms. Moreno's post-op records, Dr. Spier documents Ms. Moreno's worsening symptoms but does not provide more recent scans or examinations indicating Ms. Moreno's disease has worsened to the point that there is substantial medical doubt that Ms. Moreno will survive more than six months. Dr. Spier states that "there is substantial medical doubt regarding Mrs. Moreno's survival beyond six months from the date of this declaration." His evaluation that Ms. Moreno's disease may imminently result in death lacks clear and convincing medical documentation after April 2026. Therefore, Plaintiffs' evidence is insufficient to show that Plaintiffs are entitled to trial preference under Code of Civil Procedure section 36, subdivision (d).

The

court does not consider Plaintiffs' clam under section 36, subdivision (e), because the "interest of justice" standard is part of subdivision (d). The court notes that when a preferential trial date is granted, all parties must work with exceptional diligence to prepare for trial. The court disagrees with Estee Lauder's and Gold Bond's argument that their interests in discovery and dispositive motions – while legitimate – may prevail even when the grounds for preference are established. Courts have concluded that the Legislature has prioritized the right to a preference if the criteria are met. (Miller v. Superior Court (1990) 221 Cal.App.3d 1200, 1206 ["Thus, relevant precedent upholds the

absolute command of section 36(a) in light of its plain meaning, despite recognition that in certain instances there are strong countervailing considerations—deriving from principles of efficient trial court management; from fairness and due process to other litigants; and from divergent public policy or statutory contexts in which the section 36(a) mandate may be difficult, impractical, or impossible to realize”]; *Pabla v. Superior Court* (2023) 90 Cal.App.5th 599, 604, fn. 5.)

This denial of a preferential trial setting is without prejudice to a motion based on future changed circumstances.

III.

Conclusion

Plaintiffs' motion for trial setting preference is denied.

Plaintiffs are ordered to give notice.